

IN THE EMPLOYMENT TRIBUNAL

BETWEEN:

The Claimant – Claimant

The Respondent – Respondent

GROUPS OF CLAIM

A. INTRODUCTION

1. The Claimant brings claims for direct disability discrimination (section 13), discrimination arising from disability (section 15), and victimisation (section 27) arising from the Respondent's decision to reject his application for a technical specialist role (reference [redacted]) without interview.
2. The central contention is simple. In early 2026, Senior Manager A (the head of the relevant team) reviewed the Claimant's professional profile and encouraged him to apply, provided links to vacancies, and contacted HR on his behalf. At that point she had no knowledge of his disability, his adjustment requests, his dismissal, or his live Employment Tribunal proceedings for disability discrimination. Later that spring, after the Claimant made those protected disclosures, he was rejected without interview with a reason – insufficient experience in a specific technical area – that had never been mentioned before.
3. Critically, the recruiters who handled the application – Recruiter A and Recruiter B – knew about the Claimant's disability, his Disability Confident Scheme ("DCS") complaint, his dismissal, and his live ET proceedings. Despite that knowledge, they assessed him as suitable, passed him through screening, redirected him to the role, and stated they were "hoping" he would be invited to interview. Under the DCS, the recruiters who passed the Claimant through screening necessarily considered that he met the minimum criteria for an interview. Their subsequent disappointment confirms they believed he should have been interviewed.
4. The decision to reject him was made by someone else, or on a basis the recruiters themselves did not endorse.
5. The claim is supported by two additional strands: (i) a written complaint submitted by the Claimant to the Respondent's recruitment team in early spring 2026, explicitly identifying himself as disabled and alleging DCS non-compliance, which constitutes a protected act under section 27(2)(c) and (d) EqA 2010 and fixed the Respondent with actual knowledge of his disability before the application was submitted; and (ii) the disclosure during a screening call in mid-spring 2026 of live ET proceedings for

disability discrimination against a former employer (Case No. [redacted]), which constitutes a further protected act under section 27(2)(d) EqA 2010.

B. BACKGROUND FACTS

The Claimant's professional profile

6. The Claimant has specialist professional experience in a technical, quantitative field. His CV and professional profile are specifically optimised for technical specialist roles. It is his own view, supported by the independent assessments of two experienced professionals set out below, that his profile is well-suited to this type of work in a financial institution. The Claimant is disabled; his cognitive profile – characterised by pattern recognition, systematic thinking, attention to detail, literal interpretation, and deep analytical focus – maps with precision onto the requirements of this type of work. The core skills are systematic testing, challenge of assumptions, and identification of weaknesses in complex systems.

Senior Manager A: her role, her assessments, and her knowledge

7. Senior Manager A is the head of the relevant department at the Respondent. The Claimant has not been informed by the Respondent who the hiring manager for the role was. He believes, for the reasons set out in this section, that Senior Manager A was the hiring manager or a primary decision-maker in the shortlisting process. The Respondent is required to clarify this. If Senior Manager A was not the hiring manager, the Respondent must identify who was and explain what information that person held about the Claimant's protected characteristics and acts.
8. The following matters support the inference that Senior Manager A was the hiring manager:
 - Senior Manager A is the head of the department for which the role was being recruited. She is the most senior person in that team and the natural decision-maker for appointments within it.
 - Senior Manager A actively engaged with the Claimant's candidacy in early 2026, encouraging him to apply and contacting HR on his behalf – conduct consistent with someone who would have decision-making authority over the appointment.
 - Recruiter A's email of late April 2026 states she was waiting for feedback from a female individual before the rejection decision could be communicated. The most natural reading of this, given Senior Manager A's role and prior involvement, is that the female individual is Senior Manager A.
 - The rejection reason – framed in terms of comparative technical experience – is consistent with an assessment made by a domain expert in the hiring team rather than a recruiter.

9. In or around spring 2022, Senior Manager A held an equivalent position at a different financial institution. On that occasion, she independently identified the Claimant as a suitable candidate for a similar technical role, reviewed his CV, and forwarded it to the hiring team. That contact was initiated by Senior Manager A on the basis of his professional profile alone, with no knowledge of his disability or any legal proceedings. This prior assessment is significant: it demonstrates that Senior Manager A's positive evaluation of the Claimant in early 2026 was not a one-off courtesy but consistent with an expert judgment formed independently over multiple years.
10. In early spring 2026, the Claimant contacted Senior Manager A via a professional networking platform. Shortly thereafter, Senior Manager A responded, actively encouraging him to apply for a senior role and a slightly less senior role, providing links to both, and confirming it was possible to apply for both. Her encouragement was unconditional. She raised no concern about his experience, his technical profile, or any gap in the specific technical area later cited for rejection.
11. Later that month, the Claimant replied, asking Senior Manager A to contact HR to help his application past the initial screening stage, noting he had been rejected by HR multiple times and that a role in this specific technical niche would fit his cognitive profile very well. Senior Manager A then contacted Human Resources on the Claimant's behalf in an attempt to assist his application past the initial screening stage. Shortly afterward, she replied, advising him to answer screening questionnaires carefully to pass to the next phase. The Claimant acknowledged this. This exchange confirms she remained actively engaged with and supportive of his candidacy through to the end of that month.
12. At the time of every interaction set out above, Senior Manager A had no knowledge of the following: that the Claimant is disabled; that he had applied under the DCS; that he had requested reasonable adjustments; that he had been dismissed by a previous employer; or that live ET proceedings for disability discrimination were ongoing. Her positive assessment of his candidacy was formed entirely on the basis of his professional profile and employment history, both of which were fully visible to her via the professional networking platform.

The senior role application, written complaint, and prior knowledge of disability

13. In early spring 2026, prior to his contact with Senior Manager A, the Claimant applied for the senior role under the DCS. He was rejected without interview. No explanation was provided.
14. Shortly thereafter, the Claimant submitted a written complaint to the Respondent's recruitment support team. The text of that complaint was reproduced by Recruiter A in an email later that month. The complaint stated that the Claimant is disabled;

that he had applied for technical roles under the DCS and received standard rejections despite his CV being optimised for those roles; that he was concerned recruiter discretion was undermining the DCS commitment; and that he proposed systemic controls. The complaint further noted that this technical area is one where professionals with his cognitive profile often excel.

15. This complaint is a protected act within the meaning of section 27(2)(c) and (d) EqA 2010. It explicitly identifies the Claimant as disabled and asserts that the Respondent has failed its obligations to disabled applicants.
16. Recruiter A's email of mid-April 2026 states that the Claimant's comments had been shared with her manager to review current processes. Actual knowledge of the Claimant's disability was therefore present in the Respondent's recruitment function from early spring 2026 – before the application for the second role, before the screening call, and before the rejection decision.

Recruiter A's redirection to the second role

17. In mid-April 2026, Recruiter A emailed the Claimant in direct response to his complaint. She acknowledged the complaint, stated it had been shared with her manager, and redirected him to the second role, stating his experience would be "better suited" for it. The Claimant applied shortly thereafter under the DCS.
18. Recruiter A's redirection was not a neutral recruiter assessment. It was a direct and documented response to a formal complaint about DCS failures, made by a recruiter who had actual knowledge that the Claimant is disabled. A senior recruiter acting responsibly under the DCS would not redirect a disabled candidate to a specific vacancy if that candidate were clearly unsuitable. The redirection constitutes an implicit professional confirmation that the Claimant's experience met or was proximate to the minimum criteria for the role.

The screening call: mid-April 2026 – full details and quotes

19. In mid-April 2026, the Claimant participated in a telephone screening call with Recruiter B of the Respondent's Talent Acquisition team. During that call, the following exchanges occurred:
 - Disclosure of disability and reasonable adjustments: The Claimant informed Recruiter B that he is disabled. He requested two reasonable adjustments for any future interview: (i) that interviewers make the success criteria of each question explicit, explaining what would be required to answer successfully, as he finds implicit expectations difficult to process; and (ii) that questions be asked one at a time, rather than in a list, to avoid cognitive overload.
 - Question about dismissal: Recruiter B asked the Claimant directly whether he had been dismissed during his probationary period. The Claimant answered truthfully

that he had been dismissed at the end of his probation by a previous employer. The Claimant did not volunteer this information; it was elicited by the Respondent's own question.

- Disclosure of ET proceedings: Having disclosed the dismissal, the Claimant further disclosed that the dismissal was contested and that live Employment Tribunal proceedings for disability discrimination (Case No. [redacted]) were ongoing. The Claimant made this disclosure because he was concerned that failing to mention the proceedings would create a false or misleading impression.

20. The disclosure of the live ET proceedings is a protected act under section 27(2)(d) EqA 2010. The Respondent procured this disclosure through its own questioning.

Post-screening communications – quotes and requests

21. Shortly after the screening call, the Claimant emailed Recruiter B stating:

"I was wondering if it was possible not to communicate to the hiring team that 1. adjustments would improve my performance, 2. that I am applying under the DCS, 3. my legal history and the reason of leaving with my last employer. I would like to minimize the information that I would need to share with the hiring team (the individuals who make the decision about whether I am hired) to optimize my chances for an offer. In other words, I am going to try to pass the interview without adjustments."

He repeated this request a few days later, stating:

"Would it be possible not to let the hiring team know about: 1. the DCS, 2. the reasonable adjustments, 3. my legal history and termination. This is to prevent a potential unconscious bias to optimize my chances for passing the interview."

22. These emails demonstrate the Claimant's awareness that this information could prejudice an objective assessment and his attempt to mitigate that risk.

23. Shortly thereafter, Recruiter A replied to the Claimant, stating:

"I am just waiting for her to give me feedback on your CV."

The decision had not yet been made; it was being taken at hiring manager level.

24. In late April 2026, Recruiter A communicated the rejection. She stated:

"I have the feedback for you now, I'm sorry to see you were not selected this time, [Recruiter B] and I were hoping you may have been invited for an interview."

The stated reason was:

"Unfortunately, [the Claimant] did not meet the criteria for the role as he does not have enough comprehensive and in-depth experience in the areas required for the role in comparison with the other candidates, particularly in the development of [a specific technical area]."

C. LEGAL FRAMEWORK

25. Section 39(1) and (2) EqA 2010 provide that an employer must not discriminate against or victimise a person in the arrangements it makes for deciding to whom to offer employment, or by not offering the person employment. The Claimant was a job applicant within the meaning of section 39(1).
26. Section 13(1) EqA 2010 provides that a person (A) discriminates against another (B) if, because of a protected characteristic, A treats B less favourably than A treats or would treat others. Disability is a protected characteristic under section 4 EqA 2010.
27. Section 27(1) EqA 2010 provides that a person (A) victimises another (B) if A subjects B to a detriment because B does a protected act. Section 27(2)(c) and (d) identify doing something for the purposes of or in connection with the Act, and making an allegation that the respondent has contravened the Act, as protected acts. Section 27(2)(d) further identifies the bringing of proceedings under the Act as a protected act. The protected act need not be the sole cause of the detriment; it suffices that it was a material or significant cause.
28. Section 136 EqA 2010 provides for reversal of the burden of proof. Where the Claimant establishes facts from which the Tribunal could decide, in the absence of any other explanation, that a contravention has occurred, the burden shifts to the Respondent to prove that the treatment was not a contravention. This applies to both claims advanced.
29. The Disability Confident Scheme is a government-endorsed voluntary scheme under which participating employers – including the Respondent – commit to guaranteeing interviews to disabled applicants who meet the minimum criteria for a role. The Respondent's conduct falls to be assessed against that commitment.
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D. CLAIM 1: DIRECT DISABILITY DISCRIMINATION (s.13 EqA 2010)

The Claimant's disability

30. The Claimant is disabled. His condition has a substantial and long-term adverse effect on his ability to carry out normal day-to-day activities. He is a disabled person within the meaning of section 6 EqA 2010.

The Respondent's knowledge of disability

31. The Respondent had actual knowledge of the Claimant's disability from early spring 2026, before the application for the role was submitted. That knowledge arose from his written complaint, which explicitly stated he is disabled and was escalated to management.

The decision-maker: Senior Manager A

32. The Claimant contends that Senior Manager A was the hiring manager who made or materially influenced the decision to reject his application. The Respondent has not disclosed the identity of the hiring manager. The Claimant repeats the inference set out in Section B above.

The controlled comparison: what changed between early spring and late spring

33. The direct discrimination case rests on a controlled comparison between Senior Manager A's two assessments of the same candidate:

- Early spring 2026: Senior Manager A reviewed the Claimant's professional profile – which set out his professional experience in full, including work relevant to the specific technical area later cited – and formed a sufficiently positive view to encourage him to apply, provide links, and contact HR. She raised no concern about his technical experience. She had no knowledge of his disability, DCS status, adjustment requests, dismissal, or ET proceedings.
- Late spring 2026: The Claimant was rejected without interview. The stated reason was insufficient experience in a specific technical area – yet the Claimant's profile, visible to Senior Manager A and the recruiters, included experience relevant to that area. The first time any technical gap was raised was after the protected disclosures.

34. The professional profile was constant. The outcome changed. The only material variables that changed between early spring and late spring were the protected disclosures: his disability, his DCS status, his reasonable adjustment requests, his dismissal by a previous employer, and his live ET proceedings. This comparison is as close to a controlled experiment as an employment discrimination case permits. In the absence of any explanation from the Respondent for this reversal, the inference of a causal link between the protected disclosures and the rejection is the most compelling account of the facts.

The stated reason does not withstand scrutiny

35. The Respondent's stated reason is not genuine:

- The alleged experience gap was visible to Senior Manager A in early spring 2026 – she raised no concern.
- Recruiter A reviewed the same CV in mid-April 2026 and redirected the Claimant to the role.
- Neither Senior Manager A nor Recruiter A mentioned the specific technical area prior to the rejection.
- The reason appeared only after the screening call in which the protected disclosures were made.
- Recruiter A admitted she and Recruiter B had been "hoping" the Claimant would be invited to interview – irreconcilable with obvious unsuitability.

36. The Respondent's stated reason is also factually inaccurate. The Claimant's CV – before the recruiters and hiring manager – explicitly includes relevant experience in the specific technical area at previous employers. Both are core requirements of the role. The recruiters reviewed this CV and redirected the Claimant to the role, stating his experience was 'better suited'. The Respondent cannot credibly claim the Claimant lacked experience he demonstrably has.

Less favourable treatment

37. The Claimant was treated less favourably than a hypothetical comparator – a candidate with equivalent professional experience who had not disclosed a disability, had not applied under the DCS, had not requested reasonable adjustments, had not disclosed a dismissal, and had not disclosed live ET proceedings. That comparator would not have been rejected without interview.

E. DISCRIMINATION ARISING FROM DISABILITY (SECTION 15) – IN THE ALTERNATIVE

38. If the Tribunal finds that the Claimant's rejection was not because of his disability itself (for the purposes of Section 13), the Respondent treated the Claimant unfavourably because of something arising in consequence of his disability, namely his request for reasonable adjustments.

39. During the screening call in mid-April 2026, the Claimant requested two reasonable adjustments: (i) that interviewers make the success criteria of each question explicit; and (ii) that questions be asked one at a time. This request arose directly from his disability-related processing needs.

40. The Respondent treated the Claimant unfavourably by rejecting his application without interview in late April 2026 – shortly after the adjustment request and without ever holding the interview to which the adjustments would have applied.

41. The timing and the Respondent's shifting rationale (the specific technical reason appearing only after the protected disclosures) give rise to the inference that the rejection was because of the adjustment request.

42. The Respondent cannot show that the rejection was a proportionate means of achieving a legitimate aim. Rejecting a disabled applicant to avoid making reasonable adjustments is not a legitimate aim. In the alternative, even if avoiding adjustments were a legitimate aim (which is denied), rejecting the applicant outright was not proportionate when adjustments could have been made.

43. This constitutes discrimination arising from disability contrary to Sections 15 and 39 of the Equality Act 2010.

F. CLAIM 2: VICTIMISATION (SECTION 27)

The protected acts

44. The Claimant performed two protected acts prior to the detriment:

- Protected act 1 (early spring 2026): Written complaint identifying himself as disabled and alleging DCS failures (sections 27(2)(c) and (d)).
- Protected act 2 (mid-April 2026): Disclosure of live ET proceedings for disability discrimination (section 27(2)(d)). The Respondent procured this disclosure through its own questioning.

The detriment

45. The detriment is the rejection of the application without interview (late April 2026).

The causal link

46. The causal link is established by:

- Proximity in time: rejection shortly after protected act 2.
- The Senior Manager A inference: positive assessment before protected acts, rejection after.
- Pattern of two DCS failures: rejected for senior role → complained → redirected to second role → rejected again.
- Recruiters' own expectation: Recruiter A said she and Recruiter B were "hoping" for an interview.
- Controlled comparison: every element of the Claimant's professional profile was positively assessed before the protected acts.
- Claimant's attempts to withhold information: He expressly asked that the hiring team not be told of his DCS status, adjustments, or legal history – demonstrating his belief that such information would prejudice his chances.

47. In the absence of a satisfactory explanation from the Respondent, the Tribunal is invited to infer that the protected acts were a material cause of the rejection.

G. BURDEN OF PROOF (SECTION 136)

48. The facts set out above are sufficient to shift the burden of proof to the Respondent. The Tribunal could properly conclude, in the absence of any other explanation, that the Respondent has contravened sections 13, 15, and 27.

49. In discharging that burden, the Respondent must address, among other matters:

- The identity of the hiring manager and whether Senior Manager A was consulted.
- The identity of the "her" in Recruiter A's email of late April 2026.
- Why Senior Manager A's positive assessment in early spring is consistent with rejection in late spring.

- Why Recruiter A redirected the Claimant if his experience was insufficient.
 - Whether the Claimant's requests of mid- and late April 2026 were honoured.
 - Whether the question about dismissal was asked of all screened candidates.
 - The minimum criteria for the DCS interview guarantee for the role.
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H. REMEDY

50. The Claimant seeks the following remedies:

- A declaration that the Respondent contravened the Equality Act 2010.
- Compensation for injury to feelings.
- Compensation for financial loss (on a loss of chance basis).
- Aggravated damages.
- Interest.
- Such further or other relief as the Tribunal thinks just.

51. The Claimant reserves the right to amend these Grounds following disclosure.